

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #01	CCRB Case #: 201807337	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/02/2018 6:30 PM	Location of Incident: Intersection of 177th Street and Broadway.	18 Mo. SOL 3/2/2020	Precinct: 33		
Date/Time CV Reported Sun, 09/02/2018 7:42 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/02/2018 7:42 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Clarke	2515	955824	033 PCT
2. POM Donald Gabel	01411	959643	033 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rolando Mella	16037	964165	033 PCT
2. POM Peter Saladino	10271	959961	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Clarke	Force: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Steven Clarke used physical force against § 87(2)(b)	A . Unfounded
B . POM Donald Gabel	Discourtesy: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Donald Gabel gestured discourteously toward § 87(2)(b) at the intersection of Broadway and West 177th Street in Manhattan.	B . Substantiated
C . POM Donald Gabel	Abuse: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Donald Gabel threatened to arrest § 87(2)(b)	C . Substantiated
D . POM Steven Clarke	Discourtesy: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Steven Clarke spoke discourteously to § 87(2)(b)	D . Unfounded
E . POM Steven Clarke	Abuse: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Steven Clarke threatened to issue a summons to § 87(2)(b)	E . Exonerated
F . An officer	Abuse: At the 33rd Precinct stationhouse, an officer did not process § 87(2)(b)'s complaint regarding officers.	F . Complainant Uncooperative
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 2, 2018, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System on behalf of § 87(2)(b) and himself.

On September 2, 2018, at approximately 6:30 PM, at the intersection of 177th Street and Broadway in Manhattan, PO Steven Clarke of the 33rd Precinct pulled § 87(2)(b) over for a traffic infraction. During the interaction, PO Clarke allegedly used physical force against § 87(2)(b) (Allegation A: Force, Unfounded). PO Donald Gabel, also of the 33rd Precinct, gestured discourteously towards § 87(2)(b)'s passenger, § 87(2)(b) (Allegation B: Discourtesy, Substantiated). PO Gabel threatened to arrest § 87(2)(b) (Allegation C: Abuse of Authority, Substantiated). PO Clarke allegedly spoke discourteously to § 87(2)(b) (Allegation D: Discourtesy, Unfounded). PO Clarke threatened to issue a summons to § 87(2)(b) (Allegation E: Abuse of Authority, Exonerated). § 87(2)(b) was issued summonses for § 87(2)(b)

§ 87(2)(b) drove to the 33rd Precinct stationhouse. An officer at the 33rd Precinct stationhouse did not process his complaint against officers (Allegation F: Abuse of Authority, Complainant Uncooperative).

The investigation obtained body worn camera footage which captured the initial allegations surrounding § 87(2)(b)'s vehicle stop (See Board Review 08-12 for full videos, Board Review 13 for written summary). Footage from the 33rd Precinct stationhouse was also obtained (Board Review 14).

Findings and Recommendations

Allegation (A) Force: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Steven Clarke used physical force against § 87(2)(b)

§ 87(2)(b) did not provide a verified statement. However, in his phone statement, § 87(2)(b) stated that at the conclusion of the traffic stop and after he received a VTL summons, PO Clarke told him to put on his seatbelt. § 87(2)(b) refused and PO Clarke instructed him a second time to put it on. § 87(2)(b) refused and PO Clarke opened the driver's side door and pulled § 87(2)(b) out of the car by the hand, then placed § 87(2)(b) in handcuffs and escorted him to the police car (Board Review 01).

PO Clarke stated that, once § 87(2)(b) refused to put on his seatbelt, he approached § 87(2)(b)'s vehicle and asked for his license, insurance and registration three times (Board Review 04). § 87(2)(b) refused to provide these and PO Clarke asked § 87(2)(b) to step out of the car. § 87(2)(b) stepped out of the vehicle of his own accord and PO Clarke placed him in handcuffs. PO Clarke denied forcibly removing § 87(2)(b) from his vehicle.

PO Clarke's BWC captured the interaction and showed § 87(2)(b) stepped out of his car without any physical contact from officers (Board Review 15). PO Clarke asked § 87(2)(b) if he wanted to have the summons issued at the stationhouse. § 87(2)(b) stepped out and said, "Go ahead, take me."



PO Clarke BWC force.mp4

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Unfounded**.

Allegation (B) Discourtesy: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Donald Gabel gestured discourteously toward § 87(2)(b)
Allegation (C) Abuse of Authority: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Donald Gabel threatened to arrest § 87(2)(b)

It is undisputed that PO Donald Gabel and PO Peter Saladino (also of the 33rd Precinct) responded to the location at the request of PO Mella and PO Clarke. § 87(2)(b) stepped out of the vehicle and spoke to § 87(2)(b)

The investigation was unable to establish contact with § 87(2)(b)

§ 87(2)(b) stated that once he was placed in the police car, PO Gabel told § 87(2)(b) “You need to stand over there, or we’ll do the same thing we did to your boyfriend.” § 87(2)(b) did not give testimony as to what § 87(2)(b) was doing at the time.

PO Gabel stated that when he and PO Saladino arrived, § 87(2)(b) was in the back of the patrol car and § 87(2)(b) was walking back and forth from § 87(2)(b) s car to the police car. § 87(2)(b) was “verbally aggressive, combative, and disrespectful” with all the officers. PO Gabel could not recall specifics but stated that she referred to the officers as pigs and stated they weren’t men. PO Gabel felt uncomfortable with § 87(2)(b) movement as he did not know what was in § 87(2)(b) s car. After approximately five to ten minutes, PO Gabel walked over to § 87(2)(b) s car and looked inside the passenger’s side window. He then went around the front of the car and looked into the driver’s side window. PO Gabel did not enter the vehicle. § 87(2)(b) asked PO Gabel if she could help him and he responded that she could not, and that he could look in the car and open the door, and told her that if she continued, she could end up in the back of the police car. PO Gabel walked back toward PO Mella (who was standing by the patrol car) and did not interact with § 87(2)(b) further. PO Gabel denied making any physical gesture or giving § 87(2)(b) a “thumbs up.” He stated he was gesticulating with his hands as he spoke and while he did not give a “thumbs up,” had he done so, it would not have been discourteous. PO Gabel stated that while § 87(2)(b) behavior was not sufficient cause for an arrest, she was being aggressive and combative and had she hypothetically become more hostile, she could have been arrested for disorderly conduct.

PO Mella stated that § 87(2)(b) was walking back forth between the patrol car and § 87(2)(b) s car. He stated she was “acting disorderly” which he described as her being upset and “Giving attitude” to PO Gabel and PO Clarke, although he could not recall what she said to either officer (Board Review 03). § 87(2)(b) spoke into the patrol car to PO Clarke and § 87(2)(b) including telling § 87(2)(b) to calm down. An officer (PO Mella did not recall who or when) instructed § 87(2)(b) to stay away from the patrol car. PO Mella did not recall an officer

threatening to arrest § 87(2)(b) but stated that she could have been arrested if she remained by the patrol vehicle. PO Mella did not observe PO Gabel make a “thumbs up” gesture.



PO Mella's BWC captured the interaction (Board Review 18). PO Gabel approaches § 87(2)(b) and looks through the passenger's side window. § 87(2)(b) remains standing by the front passenger side of the police car and tells § 87(2)(b) (who is yelling inside the car) to calm down. PO Gabel walks around to the driver's side of § 87(2)(b)'s vehicle and looks through the window. § 87(2)(b) asks, "Can I help you?" PO Gabel states, "No you can't help me, just stay where you are. I can look wherever I want" and flashes a "thumbs up" with his right hand (See Board Review 19 for screenshot). § 87(2)(b) states "Yeah, you could, but you can't open the door." PO Gabel replies, "Oh, I could open the door too, actually. (If) you want to try me, we can figure that out too, then you can join your boyfriend in the back of the car, howabout that?" At no point during the interaction does § 87(2)(b) refer to officers as pigs or make derogatory remarks to officers until the last few seconds of the interaction in which she refers to PO Clarke as a "Fucking asshole." At no point during the incident does BWC footage capture an officer instructing § 87(2)(b) to move away from the patrol car.

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegation B** be closed as **Substantiated**.

1. He engages in fighting or in violent, tumultuous or threatening behavior; or

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2. He makes unreasonable noise; or
3. In a public place, he uses abusive or obscene language, or makes an obscene gesture; or
4. Without lawful authority, he disturbs any lawful assembly or meeting of persons; or
5. He obstructs vehicular or pedestrian traffic; or
6. He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or
7. He creates a hazardous or physically offensive condition by any act which serves no legitimate purpose” (Board Review 20).

§ 87(2)(g)

Therefore, it is recommended
Allegation C be closed as **Substantiated**.

Allegation (D) Discourtesy: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Steven Clarke spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: At the intersection of Broadway and West 177th Street in Manhattan, Police Officer Steven Clarke threatened to issue a summons to § 87(2)(b)

It is undisputed that once PO Clarke finished writing summonses for § 87(2)(b) he removed him from the patrol car and removed his handcuffs. § 87(2)(b) was issued a summons for no seatbelt and for disobeying an officer in addition to the initial summons for window tints. As he left, he argued further with PO Clarke and PO Clarke threatened to issue him an additional summons.

§ 87(2)(b) stated that, after he was removed from the patrol car he went back to his car and PO Clarke stated, “Alright, have a nice day before I write you another fucking ticket.” § 87(2)(b) slammed his license on the police car and told the officers to write him as many tickets as they wanted. § 87(2)(b) took § 87(2)(b)’s license and they went back to their car. § 87(2)(b) then drove to the 33rd Precinct stationhouse.

PO Clarke stated that when § 87(2)(b) stepped out of the patrol car, he was uncuffed and issued the two additional summonses for the seat belt infraction and disobeying officer instructions. § 87(2)(b) screamed at officers and threatened to fight them, and refused to move his double parked vehicle out of a lane of traffic. PO Clarke did not recall threatening to issue § 87(2)(b) a summons but stated that he could have been arrested or issued a summons for disorderly conduct at that point for screaming and threatening to fight officers in the street. PO

Clarke denied using the word “Fuck” at any point during the incident or stating that he would write another “fucking ticket.”



PO Clarke threat of summons.mp4

BWC captures the end of the interaction and PO Clarke does not use the word “Fuck” or any profanity at any point during the incident (Board Review 16 for clip). Once uncuffed, § 87(2)(b) challenges the officers to fight him. PO Clarke tells him to, “Have a nice day.” PO Mella tells § 87(2)(b) that he has 15 days to answer as he walks away from the patrol car, and § 87(2)(b) turns around and states “I’ll answer tomorrow, bro.” PO Clarke repeats, “Have a nice day,” and § 87(2)(b) states “I don’t have to move, nigga.” PO Clarke responds, “Actually you do. Do you want another summons for discon?” § 87(2)(b) stops and puts his license on the hood of the patrol car and tells PO Clarke to write all the summonses he wants. PO Clarke tells § 87(2)(b) to have a nice day again and asks § 87(2)(b) to take him away.

§ 87(2)(g)

it is recommended **Allegation D** be closed as **Unfounded**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Exonerated**.

Allegation (F) Abuse of Authority: At the 33rd Precinct stationhouse, an officer did not process § 87(2)(b) s complaint regarding officers.

§ 87(2)(b) stated that immediately after receiving the summonses from PO Mella and PO Clarke, he went to the 33rd Precinct stationhouse in order to file a complaint. § 87(2)(b) was told that he could not file at the stationhouse and was provided three ways to contact the CCRB.

§ 87(2)(b) did not cooperate with the investigation. Stationhouse surveillance footage was obtained but does not contain audio and was insufficient to allow the investigation to proceed with video alone (Board Review 14). There is no other footage of the interaction and no other footage was obtained by the investigation. Therefore, it is recommended **Allegation F** be closed as **Complainant Uncooperative**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one CCRB complaint and has been named a victim in no allegations (Board Review 21)
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 22)
- PO Steven Clarke has been a member of service for five years and has been the subject in four CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Donald Gabel has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- [illegible]

Squad No.: 1

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date